

Tamil Nadu Private Colleges (Regulation) Rules, 1976

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Tamil Nadu Private Colleges (Regulation) Rules, 1976

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Tamil Nadu Private Colleges (Regulation) Rules, 1976

Rule TAMIL-NADU-PRIVATE-COLLEGES-REGULATION-RULES-1976 of 1976

Published on 22 June 1976

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Tamil Nadu Private Colleges (Regulation) Rules, 1976

Published vide Notification No. G. O. Ms. No. 1285, Education, dated 22nd June, 1976-No. SRO A-206 (a) 176

In exercise of the powers conferred by section 53 of the Tamil Nadu Private Colleges (Regulation) Act, 1976 (President's Act

19 of 1976

), the Governor of Tamil Nadu hereby makes the following rules:-

1.

Short title.

- These rules maybe called the Tamil Nadu Private Colleges (Regulation) Rules, 1976.

2.

Definitions.

- In these rules, unless the context otherwise requires,-

(a)

"Act" means the Tamil Nadu Private Colleges (Regulation) Act, 1976 (President's Act 19 of 1976

);

(b)

"College" means and includes Arts and Science College, Teachers Training College, Physical Education College, Oriental College, School or Institute of Social Work and Music College maintained by the educational agency and approved by, or affiliated to, the University;

(c)

"Committee" means the college committee;

(d)

"Director" means the Director of Collegiate Education;

(e)

"Form" means a Form appended to these rules; and

(f)

"Section" means a section of the Act.

3.

Application for permission to establish a college.

(1)

(i)

Every application for permission to establish a college under section 4 shall be submitted in Form 1 so as to reach the Government in the Department of Education, Science and Technology not later than the 30th day of September of the year preceding the academic year in which the college is proposed to be established.

(ii)

Every application for permission shall be accompanied by a copy of the constitution of the educational agency and a receipt from a Government Treasury for the remittance of the fee specified in sub-rule (2).

(2)

The fee for the grant of permission to establish a college shall be rupees five hundred only and it shall be remitted in a Government Treasury to the Government account.

(3)

Every educational agency of a college to be established shall create the endowment prescribed by the University concerned and the details of such endowment shall be sent along with the application.

(4)

Every application not accompanied by a receipt from a Government Treasury for the remittance of the fee referred to in sub-rule (2) and every application received after the due date are liable to be rejected.

(5)

The statement under sub-section (3) of section 4 shall be sent in Form 2 so as to reach the Government not later than the 31st day of July of that year.

4.

Grant of permission.

(1)

The decision of the Government under section 5 shall be communicated to the applicant within six months from the last date prescribed for the receipt of application under sub-section (1) of section 4.

(2)

Where the permission to establish a college is refused, the applicant shall make an application to the Government for the refund of one half of the fee remitted along with application.

5.

Application for approval of transfer, etc., under section 7.

(1)

Every application for approval of a change in the Constitution of the educational agency shall be, in Form 3.

(2)

Every application for approval of transfer of management of any college or for the approval of any such transfer where the transfer was made without prior approval having been obtained for such transfer, shall be to Form. 4.

6.

Minority college to send statement.

(1)

Every minority college in existence immediately before the 21st day November 1975 shall send a statement in Form 5 so as to reach the competent authority not later than the 31st day of July 1976.

(2)

Every minority college established and administered after the 21st day of November 1975 and before the 1st day of June 1976 shall send a statement in Form 5 so as to reach the competent authority not later than the 31st day of August 1976.

(3)

Every minority college established and administered after the 1st day of June 1976 shall send a statement in Form 5 so as to reach the competent authority within three months from the date of establishment of the college.

7.

Payment of grant.

(1)

Subject to the orders and instructions issued by the Government from time to time, every college may be paid grants specified in sub-rule (2). No grant shall be paid to any college, the affiliation/approval of which has been withdrawn by University concerned for the period of such withdrawal of affiliation/approval.

(2)

Subject to such terms and conditions and at such rates as may be approved by the Government from time to time, grants may be paid to any college for the purposes of teaching, construction of buildings, purchase of building site, playground, furniture, books and appliances.

(3)

Subject to the provision of sub-section (2) of section 10, the Government may withhold permanently or for any specified period, the whole or part of any grant, if any of the conditions specified below or directions or orders issued by the Government or the Director or his subordinate officers from time to time, are contravened or not complied with-

(a)

No educational agency shall collect from the students, parents or any other person for any purpose whatsoever fees, donations or subscriptions other than those specified by the competent authority under section 28;

(b)

The educational agency shall carry out the instructions issued by the Government from time to time in the public interest to ensure that the interest of students belonging to the socially and educationally backward classes and the linguistic minorities are safe guarded;

(c)

The educational agency shall carry out the instructions issued by the Government or by the Director with a view to maintain academic standards and to safeguard the interests of the teachers and the students;

(d)

The educational agency shall fulfil all the conditions stipulated, at the time of according permission to establish the college;

(e)

The college shall be located in a building which is accessible to all persons, irrespective of caste or community;

(f)

The premises of the college or subsidiary building appertaining to it or a playground or a vacant site belonging to the college whether adjacent to or remote from it shall ordinarily be used for the purposes of conducting the college or for functions conducted by such college or for authorised examinations or for other purposes specifically permitted by the Director;

(g)

The committee shall not appoint any teacher who has been duly declared unfit to be a teacher by the University, or the

Director, or whose certificate has been suspended or cancelled or who has been convicted for offence involving moral turpitude;

(h)

The committee shall grant fee concessions to students in accordance with the orders issued by the Government, from time to time.

8.

Constitution of committee.

(1)

The educational agency of every college other than minority college, shall constitute a committee.

(2)

The term of office of the members of, the committee shall be three years. Members of the committee shall be eligible for re-nomination.

(3)

The committee shall consist of-

(a)

representatives of the educational agency, who shall be nominated by such educational agency:

Provided that no employee of the college shall be nominated under this category;

(b)

Principal of the college; and

(c)

Two senior-most Professors.

Explanation 1. - In case where there is only one Professor that Professor and one senior-most Assistant Professor/Lecturer and where there is no Professor, two senior-most Assistant Professors/Lecturers shall be in the committee.

Explanation 2. - For purposes of this rule, the seniority shall be determined with reference to the total service rendered by the Professors/Assistant Professors/Lecturers in any college or colleges in the State of Tamil Nadu.

(d)

One member nominated by the University concerned.

(4)

When a vacancy in category (c) in sub-rule (3) arises, the next senior-most Professor or Assistant Professor/Lecturer, as the case may be, shall be nominated to the committee.

(5)

The educational agency shall nominate one of its representatives in the committee as the President.

(6)

No person shall be eligible to become a member of the committee, if he is-

(a)

a minor; or

(b)

a mentally unsound person; or

(c)

a person convicted for criminal offence involving moral turpitude;

(d)

an insolvent; or

(e)

a person found responsible for any serious irregularity as a result of enquiry, by the University or the Department of Education, Science and Technology.

9.

Secretary of the committee.

(1)

The educational agency shall nominate one of its representatives as Secretary of the committee:

Provided that it shall be open to the educational agency, to nominate the Principal as Secretary of the committee.

(2)

The term of office of the Secretary shall ordinarily be three years. However, he/she shall be eligible for renomination for subsequent terms. If the educational agency intends to change the Secretary within the period of three years, it shall do so only with the prior approval of the Director. Application for approval of change in the Secretaryship shall be made to the Director in Form 6.

(3)

The Secretary shall function for and on behalf of the committee and educational agency.

(4)

The Secretary shall act according to the resolutions passed at the meeting of the committee.

(5)

The Secretary shall not interfere in the internal administration of the college such as admission, examination, promotion of student and other academic matters as also the administration of the special fee funds, which shall be made the exclusive responsibility of the Principal.

(6)

The Secretary shall be responsible for the maintenance, of proper and accurate accounts and the administration of college funds except special fee funds.

10.

Meetings of the committee.

(1)

The meetings of the committee shall be convened by the Secretary with the approval of the President.

(2)

No meeting of the committee shall be held except at the premises of the college or the place where the educational agency has its office, the address of which has been furnished by the educational agency to the Director.

(3)

No meeting of the committee shall be conducted unless-

(a)

at least seven clear days' notice in writing has been given to the members of the Committee; and

(b)

at least fifty per cent of the total number of members of the committee are present.

Explanation. - If the total number of the members of the committee is an odd number, the next higher even numbers shall be taken for the purpose of this sub-rule.

(4)

The minutes of the meeting of the committee shall be recorded and shall be circulated to the members of the committee. A copy of the minutes shall be communicated by the Secretary to the Director within fifteen days from the date of the meeting.

(5)

Subject to the provisions of sub-rule (3), the Director may, of his own motion, call for a meeting of the committee and such meeting shall be held at such place and at such time as he may direct. If such a meeting could not be conducted for want of quorum, it shall stand adjourned to the next day at the same time and place and the number of members present at such adjourned meeting shall constitute the quorum.

11.

Conditions of service, etc. of teachers and other persons in college.

(1)

The number of teachers employed in a college shall not exceed the number of posts fixed by the Director, from time to time, with reference to the academic requirements and norms of work load prescribed by the respective Universities and overall financial considerations.

(1-A) Every private college, not being a minority college, shall reserve 18 per cent of the vacancies for appointment as teacher or other employee, for candidates belonging to Scheduled Castes and Scheduled Tribes.

(1-B) Every private college, not being a minority college, shall reserve 50 per cent of the vacancies for appointment as teacher or other employee, for the candidate belonging to the Backward Classes.

(1-C) The claims of members of the Backward Classes, Scheduled Castes and Scheduled Tribes shall also be

considered for the remaining 32 per cent of unreserved vacancies which are filled on the basis of merit. Where a candidate belonging to Backward Classes or Scheduled Castes or Scheduled Tribes is selected on the basis of merit in the said 32 per cent of the unreserved vacancies, the number of vacancies reserved for Backward Classes, Scheduled Castes and Scheduled Tribes, as the case may be, shall not, in any way, be affected.

(1-D) If a qualified and suitable candidate belonging to any of the Scheduled Castes, Scheduled Tribes or Backward Classes is not available for selection for appointment in the turn allotted for them in the cycle, the turn so allotted to the Backward Classes shall lapse and the vacancy shall be filled by the next turn in the order of rotation; but the turn so reserved for Scheduled Castes and Scheduled Tribes shall not lapse the number of candidates to be selected in that recruitment shall be reduced by the number of Scheduled Castes and Scheduled Tribes candidates not available for the selection against the turn reserved for them. The unfilled vacancies reserved for Scheduled Castes and Scheduled Tribes shall be carried-over to the next recruitment and selection for appointment to that post in the next recruitment and selection made first for the carried over turn and then the normal rotation shall be followed. If qualified Scheduled Castes or Scheduled Tribes candidates are not available even then, the carried-over turn shall lapse and the vacancy shall be filled by the next turn in the order of rotation.

(2)

(i)

The committee of every college shall enter into an agreement with the teachers in Form 7-A and with the employees other than teachers in Form 7-C. If the appointment is for a period not exceeding three months, the agreement shall be made in Form 7-B in the case of teachers and in Form 7-D in the case of employees other than teachers.

(ii)

Four copies of the agreements referred to in clause (i) shall be executed, one copy shall be furnished to the teacher or the employees other than teacher, as the case may be, second copy shall be retained by the committee, the third copy shall be forwarded to the Director and the fourth copy shall be forwarded to the University concerned. Fresh agreements shall be executed whenever there is a change of post specified in earlier agreement.

(3)

In the case of regular vacancies, a fully qualified candidate shall be appointed only on a regular basis. However, in a temporary vacancy arising on account of leave, deputation for training or suspension, etc., a qualified candidate may be appointed temporarily for a specified period provided that such teachers services shall not be terminated before the expiry of the said period.

(4)

[(i) Promotions in respect of teaching staff shall be made on grounds of merit and ability, seniority being considered only where merit and ability are approximately equal, and in respect of non-teaching staff, promotions shall be made on seniority basis, provided other conditions, regarding qualification are satisfied.]

[Substituted by G. O. Ms. No. 60, Education (RD), dated the 20th January 1986.]

(ii)

[The committee shall fill up the posts by promotion or by direct recruitment. The committee shall, while making promotion, consider the claims of all the qualified teachers in that college. If, however, none of the qualified teachers in the college is found suitable for promotion, the vacancy shall be filled up by direct recruitment by calling for applications from qualified persons through the Press or by calling for a list of candidates from the Employment Exchange by following the rule of reservation ordered by the Government, from time to time, for direct recruitment.]

[Substituted by G. O. Ms. No. 1690, Education, dated the 21st October 1986.]

Explanation. - For purposes of this rule, if an educational agency has established and administered more than one college, then, the colleges under the control of that educational agency shall be treated as one unit.

(5)

Service register shall be maintained for every teacher or other person ' employed in a college in the Form prescribed for Government servants, from time to time, showing among others, the date of appointment, the scale of pay on which the teacher or other person employed in a college, was appointed, the increments given, from time to time, the leave at credit and the leave granted and other relevant entries such as awards and punishments, etc.

(6)

The scales of pay and other allowances of every teacher and other person employed in a college shall be as approved by the Government, from time to time.

(7)

Every teacher and other person employed in a college shall be governed by the leave rules approved by the Government, from time to time, in respect of them.

(8)

Every teacher in a college shall be governed by the rules under the Teachers Provident Fund Scheme and the committee shall ensure that all the teachers who are eligible for admission to the said Scheme are admitted to the Scheme.

(9)

Every teacher or other person employed in a college shall, subject to the orders issued by the Government, from time to time, be eligible for pension.

12.

Teachers and other persons employed in a college to be covered by Code of Conduct.

(1)

Every teacher and other person employed in a college shall be governed by the Code of Conduct as set out in Annexure I.

(2)

Every teacher or other person employed in a college shall, for violation of any of the provisions of the Code of Conduct, be liable to disciplinary action and punishment which may include dismissal, removal, termination of service or reduction in rank.

(3)

Every committee shall send to the Director a copy of the standards of conduct referred to in sub-section (2) of section 18.

(4)

Violation of any of the standards of conduct, defined by the committee shall render the teacher or other person employed in a college liable to disciplinary action and punishment which shall not, however, include dismissal, removal, termination of service or reduction in rank.

13.

Suspension of teachers or other persons employed in colleges.

(1)

Whenever a teacher or other person employed in a college is kept under suspension for gross misconduct, the educational agency shall pay him the subsistence allowance every month at half the rate of pay which he was drawing at the time of suspension and in addition to the dearness allowance and other allowances, admissible on the basis of such pay.

(2)

Whenever a teacher or other person employed in a college is kept under suspension, the grant, payable to the college shall be governed by the following provisions, namely:-

(a)

Where, after due enquiry, including the appeal, the suspension is found justified, the committee will be entitled to the grant towards the expenditure of subsistence allowances actually paid to the teacher or other person employed in the college and such expenditure shall be taken into account as admissible item for purposes of assessment of grant. Substitutes, if any appointed, may be taken into consideration for assessment of grant if such substitute is a qualified person and is within the sanctioned strength of teaching staff as approved by the Director.

(b)

Whereas, after due enquiry, including the appeal, the suspension is found not justified, the committee shall not be entitled to any grant in respect of the expenditure on the subsistence allowance paid to the teacher or other person employed in the college. The educational agency shall, however, pay such teacher or other person the full pay and allowance he would have drawn but for his suspension. Any substitute appointed in the place of the said teacher or other person shall not be taken into consideration for assessment to grant.

14.

Appeal against the order or punishment imposed on teachers and other persons employed in colleges.

- The authority to whom an appeal under section 20 shall lie shall be the [Director of Collegiate Education]

[The words 'Director of Collegiate Education' was substituted for the word 'Government' by G.O. Ms. No. 1287, Education, dated the 13th September 1990.]

15.

Pay and allowances of teachers and other persons employed in college to be paid in the prescribed form.

- Every teacher and other person employed in a college shall be paid his pay and allowances for each month on the first working day of the succeeding month. Such payments shall be made by cheque or by demand draft and not by cash, by the Secretary of the committee or in his absence, for any reason whatsoever, by the person duly authorised by the educational agency.

16.

[Closure of private colleges.

[Substituted by G.O. Ms. No. 614, Education, dated the 14th April 1988.]

(1)

The notice for closure of a private college or a class or a course of instruction therein shall be given to the competent authority before the 1st September of the year preceding the year in which the closure is proposed to be given effect to. Such notice shall be in Form No. 8.]

(2)

(a)

When a college takes steps to close down a particular class or course of instruction, as the case may be, it should be ensured that the students who have been already admitted to such courses are not deprived of the benefit of the continuance of education in a particular course or class. While the first year classes are discontinued in a particular year with due approval from the competent authority, such private colleges should continue to run the second, and third year classes of the particular course without any interruption. Similarly, in the subsequent year when the second year classes are discontinued, such private colleges should continue to run the third year classes without any interruption.

(b)

While applying for closure or discontinuance of a class or course by the private college, the management of such private college should furnish the names and details of service of the Junior-most teachers and others who are rendered surplus due to such closure to the competent authority for consideration for re-deployment of such teachers to the needy colleges.

17.

Educational agency to send list of properties.

(1)

Every educational agency shall, on or before the 1st day of July of each year commencing from the 1st day of July 1976, send to the competent authority a statement of all movable properties the value of which, individually is not less than Rs. 100 (Rupees one hundred only) and where there are more than one article of the same category, if the total value of such articles exceeds Rs. 500 (Rupees five hundred only) and a statement of all immovable properties. The statement in respect of immovable property shall contain the following particulars and it shall be authenticated by the educational agency:-

(a)

Name of property.

(b)

Description, address and location.

(c)

Area / Extent together with the survey number.

(d)

In the case of cultivable land, its classification and the crops grown.

(e)

Market value.

(f)

Financial income derived from the property.

(g)

Remarks, if any.

Explanation. - A certificate from an officer of the Revenue Department not lower in rank than that of a Tahsildar shall be obtained in respect of items (e) and (f) above, at the time of the first submission of the statement.

(2)

Whenever there is any change in the movable or immovable properties, such change should be indicated in the statement.

18.

Restriction on alienation of property of college.

(1)

The movable and immovable properties referred to in rule 17 shall be the movable and immovable properties for the purpose of section 27.

(2)

Movable properties in respect of which permission has been obtained, shall be sold, only through public auction. Records of such public auction shall be maintained and submitted for inspection.

19.

Fees and other charges.

(1)

No fees, other than prescribed tuition fee and special fees which are permitted to be collected or other charges or donation of any kind shall, except with the prior permission of the competent authority, be collected either from the students or from parent or from the public.

(2)

In cases where the collection of special fees has been specified by the competent authority, there shall be no deviation from the permitted rate or the purpose for which such levy is authorised. Separate accounts shall be maintained for such special fees and utilised amount at the end of the year shall be carried-over to the next year's account under the same head.

20.

Utilisation of funds and property of college.

(1)

The funds of the college shall be utilised for the bona fide purposes connected with the college.

(2)

No educational agency shall divert the funds of the college from one purpose to another, without the previous permission in writing of the Director.

(3)

In cases, where donations are collected with the previous permission of the competent authority for any specific or earmarked purposes, they shall be utilised only for such purpose. Balance amount, if any, shall be credited to the funds of the college.

21.

Accounts.

(1)

Every college shall maintain registers and records specified in Annexure II.

(2)

Every college shall keep the accounts and other records within the premises of the college. They shall be made available at all reasonable times for purposes of audit, enquiry or/and inspection by the Director or by any other person or persons authorised by him in this behalf.

(3)

The Director or any other person authorised by him in this behalf shall, at all reasonable times, have free access to the books, accounts, documents, securities, cash and other property belonging to, or in the custody of, the college and may summon any person in possession of, or responsible for, the custody of any such books, accounts, documents, securities, cash or other property to produce the same at the college office or at the office of the Director.

22.

Annual audit for accounts.

(1)

Every educational agency of a college shall submit to the Director an annual financial statement for the period ending with the 31st day of March of that year and other subsidiary statements as may be prescribed by the Director, from time to time, not later than the 1st day of July of every year or within such further time, as may be permitted by the Director. The statements shall bear the signature of the Secretary of the Committee and the Principal.

(2)

The Director shall audit or to be audited by some person authorised by him by general or special order in writing in this behalf the financial statements, accounts and other records of the college.

(3)

(i)

The competent authority shall forward a copy of the report on the audit of the accounts received under clause (a) of sub-section (2) of section 34 to the educational agency.

(ii)

The period within which the educational agency shall submit the report under clause (b) of sub-section (2) of section 34 shall be 30 days from the date of receipt of the report from the competent authority.

(iii)

Assessment of grant may be made on the basis of audit report. The final teaching grant will be sanctioned to the committee after deduction of the advance grants, if any, paid for that year.

23.

Appellate authorities under section 37.

- The authority or officer to whom an appeal under section 37 may be preferred by any person aggrieved by any order, decision or direction of competent authority under any provision of the Act shall be as follows:-

Section

Purpose

Authorities

(1)

(2)

(3)

7

Approval of change in the constitution of an educational agency or transfer of management of any college.

Director

19

Prior approval for dismissal, removal or reduction in rank of a teacher or other person employed in a college.

Director of Collegiate Education

25

Closure of a private college, class or course of instruction.

Government

27

Transfer of property of a college.

Director

28

To specify the levy of any fee or collection of any charge or payment;

Director

24.

Deposit with the Tribunal of pay and allowance of teachers and other persons employed in certain cases.

- The deposit referred to under sub-section (1) of section 40 shall be made with the Tribunal at the time of appeal or

before the transfer of appeal under Section 22, as the case may be. The deposit shall be made in cash.

25.

Reservation of seats in private colleges.

- There shall be reservation of seats in all private colleges regarding admission of students at the following ratio, namely:-

(a)

In respect of aided college (Non-minority), the management is authorised to fill up students upto ten per cent as management quota. The remaining ninety per cent quota shall be filled up following the reservation as specified in section 4 of the Tamil Nadu Backward Classes, Scheduled Castes and Scheduled Tribes (Reservation of seats in Educational Institutions and of appointments or posts in the Services under the State) Act, 1993 (Tamil Nadu Act 45 of 1994).

(b)

In respect of aided minority college and unaided college including minority college, the management is authorised to fill up students upto fifty per cent as management quota. The remaining fifty per cent quota shall be filled up following the reservation as specified in section 4 of the Tamil Nadu Backward Classes, Scheduled Castes and Scheduled Tribes (Reservation of seats in Educational Institutions and of appointments or posts in the Services under the State) Act, 1993 (Tamil Nadu Act 45 of 1994).

26.

Procedure for admission of students in Under Graduate/Post-Graduate courses in private aided Arts and Science Colleges (Non-minority).

(1)

The application form for admission of students shall be in the form approved by the Director.

(2)

The cost of application form shall be as fixed by the Government, from time to time.

(3)

The Director shall announce the date for issue of applications and fix the last date for the receipt of filled in applications in the college every year.

(4)

The receipt of filled in application shall be acknowledged by the college in a tear-off acknowledgement form.

(5)

The Principal shall prepare the list of eligible candidates based on merit-cum-reservation and shall place it before the Selection Committee.

(6)

The Selection Committee consisting of the Principal, two Senior Selection Grade Lecturers of the College and one Co-opted member of the teaching staff belonging to Scheduled Castes or Scheduled Tribes of the college shall finalise the selection list, following the reservation as provided in rule 25. The Selection Committee shall finalise and approve the selection list within one week after the last date of receipt of applications is over. The approved selection list will be displayed on the notice board of the college. A copy of the approved list shall be sent to the Joint Director of Collegiate Education of the Region concerned for scrutiny. Based on the approval, the Principal concerned shall issue admission cards.

27.

Procedure for admission of students in Under Graduate/Post-Graduate courses in private unaided Arts and Science (Non-minority) Colleges and for unaided courses in private aided Arts and Science (Non-minority) Colleges.

(1)

The application form for admission of students shall be in the form approved by the Director and shall be submitted in duplicate.

(2)

The cost of application form shall be fixed by the Government, from time to time.

(3)

The Director shall announce the date for issue of applications and fix the last date for receipt of filled-in applications in the college every year.

(4)

The application for admission to the fifty per cent of the seats to be filled according to reservation as mentioned in rule 25 in unaided Arts and Science Colleges shall be made to the college concerned with a copy marked to the Joint Director of Collegiate Education of the Region concerned.

(5)

The receipt of filled-in applications shall be acknowledged by the college in a tear-off acknowledgement form.

(6)

After the last date for receipt of filled in applications is over, the Principal of the unaided Arts and Science College shall tabulate the applications and prepare a list of eligible candidates.

(7)

The above list of eligible candidates shall be placed before the Selection Committee.

(8)

There shall be a separate Selection Committee for each college.

(9)

The Selection Committee shall consist of the Joint Director of Collegiate Education of the Region concerned as Chairman, Principal of the college concerned as Member-Secretary, two Senior Lecturers from the same college and one co-opted member of the teaching staff of that college or from any Government college to be nominated by the Joint-Director of the Collegiate Education, belonging to Scheduled Castes or Scheduled Tribes as members of the Selection Committee.

(10)

The Selection Committee shall meet at the head-quarters of the Joint Director of Collegiate Education of the Region concerned or at the Principal's office or at mutually convenient place immediately after the last date of receipt of filled-in applications is over and finalise the selection list based on the reservation as mentioned in rule 25 for the above fifty per cent seats and release the selection list within one week. The list shall be published simultaneously both at the office of Joint Director of Collegiate Education of the Region concerned and at the college. The selected applicant shall be intimated the last date for admission by registered post.

(11)

The Principal shall admit the students as per the selection list. If there is any vacancy after the last date for admission, then, the Selection Committee shall meet again and release the second selection list and, if necessary, release third selection list and the additional seats, if any, increased in a particular academic year shall be filled by the Principal on merit basis following reservation as mentioned in rule 25.

Annexure I

[See sub-rule (1) of rule 12 of the Tamil Nadu Private Colleges (Regulation) Rules, 1976]

Code of Conduct for Teachers and Other Persons Employed in a College

(1)

Every teacher or other person employed in a college shall discharge his duties efficiently and diligently and shall conform to the rules and regulations.

(1-A) It shall be the duty of a teacher or other person employed in a private college to do any work in connection with an examination conducted by the University or any college, which he is required to do by the Vice-Chancellor or the Registrar of the University or by the Principal of the College, as the case may be.

(2)

No teacher or other person employed in a college shall absent himself from his duties without prior permission. In case of sickness or absence on medical grounds, a medical certificate to the satisfaction of the college authorities shall be produced within a week.

(3)

No teacher or other person employed in a college shall engage directly or indirectly in any trade or business. In the case of remunerative work like private tuition, etc., specific sanction of the college authorities in writing shall be obtained.

(4)

(a)

No teacher or other person employed in a college shall send any application for employment under any other agency, except through the committee.

(b)

The committee shall not withhold any such application. It shall, however, be open to the committee to prescribe reasonable conditions for relieving him.

(5)

When a teacher or other person employed in a college seeks to accept honorary work without detriment to his duties, prior permission of the committee in writing shall be obtained.

(6)

A teacher or other person employed in a college, when involved in criminal proceedings, shall inform the committee of such proceedings.

(7)

No teacher or other person employed in a college shall engage himself in any political activity. He shall not associate with any political party or any organisation which takes part in politics or shall subscribe to, or assist in any other manner, any political movement.

(8)

No teacher or other person employed in a college shall contest for participate in, or canvass for, any election. Such restriction will not, however, apply to the teachers in respect of elections to the teachers' constituencies.

(9)

No teacher or other person employed in a college shall bring or attempt to bring any political or other influence on his superior authority in respect of his individual service interests.

(10)

[No teacher or other person employed in a college shall engage himself or participate in any activity which is anti-secular or which tends to create disharmony in society or in any demonstration which is prejudicial to the interests of the sovereignty and integrity of India, the security of States, friendly relation with foreign States, public order, decency or morality or which involves contempt of Court, defamation or incitement to an offence.]

[Substituted by G.O. Ms. No.1690, Education, dated the 21st October 1986.]

(11)

No teacher or other person employed in a college shall indulge in any criticism of the policies of the Government either directly or indirectly or participate in activities which brings disrepute to the Government.

Explanation. - Adoption of legitimate methods of ventilating grievance shall not be considered as criticism of the Government.

Annexure II

[See Rule 21 of the Tamil Nadu Private Colleges (Regulation) Rules, 1976]

List of Registers and Records to be Maintained by a College

1. Fee receipts.
2. Miscellaneous receipts.
3. Daily fee collection register.
4. Register of miscellaneous collections.
5. Admission and withdrawal register.
6. Term fee register.
7. Students attendance register.
8. Fee concession register.
9. Application for fee concession together with the income certificates obtained from the competent authority.
10. Register of scholarship holders.
11. Leave registers for scholarship holders.
12. Register showing the accounts of endowments of the college and the income derived therefrom.
13. Acquittance relating to the various items of scholarships.
14. Departmental cash book.
15. Daily cash book (special fees).
16. Daily cash book (general).
17. Ledger (general).
18. Ledger (special fees).

19. Vouchers (general) (incentives and stamped receipts to be kept together).
20. Vouchers (special fees) (invoices and stamped receipts to be kept together).
21. Acquittance roll (teaching staff).
22. Acquittance roll (non-teaching staff).
23. Scale register.
24. Provident fund collection and remittance.
25. Bank pass books (general and special).
26. Acquittance for the refund of tuition fee.
27. Attendance register for teaching staff.
28. Attendance register for non-teaching staff.
29. Casual leave register (teaching staff).
30. Casual leave register (non-teaching staff).
31. Register of leave other than casual leave.
32. Service Books.
33. Agreement entered into between the management and teachers.
34. Caution deposit register.
35. Postage account and private stamp account.
36. Stock registers (general funds).
37. Stock registers for laboratory articles, furniture, library books, games articles, Audio-Visual Aids, etc.

Form 1

[See sub-rule (I)(i) of rule 3 of the Tamil Nadu Private Colleges (Regulation) Rules, 1976]

(To be submitted in triplicate)

Application form for permission to establish a College

1. (a) Name of the proposed college.

(b)

Whether the college is intended for men or women or a co-educational college.

(c)

Name and address of the educational agency.

(d)

Name of the town/village where the college is proposed to be established.

2. Revenue district/taluk and post office.

3. (a) Details of the educational agency which proposes to establish the college.

(b)

Whether it is a registered body ? If so, the details, should be furnished.

(c)

Financial status of the educational agency (to be briefly stated).

4. Names of other colleges in the district in which the proposed college is to be established and the distance between them and the proposed college.

Name

Distance

Students strength

(1)

(2)

(3)

5. Names of high schools within a radius of 15 K.M. from the proposed college with details of strength of Standard (+2).

Name of High School

Distance

Number of students studying in Standard (+2)

(1)

(2)

(3)

6. Head for the opening of the college in the locality (to be briefly stated).

7. Courses proposed to be opened:

Combination of subjects

Number of section

Tamil Medium

English Medium

Humanities

(i)

(ii)

(iii)

Sciences

(i)

(ii)

(iii)

8. The amenities available to students and teachers.

9. Endowment-

(a)

Total amount/value of the endowments to be created for the proposed college as per requirements of the . University.

(b)

Details of the endowment, proposed to be created by the educational agency-

(i)

Cash (in deposits) (amount).

(ii)

Properties (details) (value of properties).

10. Site, number of hectares of lands owned by the educational agency for the proposed college.

Survey No.

Extent in hectare

11. Buildings-

(a)

Whether the college is proposed to be established in temporary building/permanent buildings?

(b)

If permanent buildings are to be constructed, amount set apart by the educational agency for this purpose.

(c)

Whether three copies of sketch plans of the buildings are enclosed ?

12. Details of other non-recurring items of expenditure and how it is proposed to be met by the educational agency-

Amount required (Rs.)

Amount provided for by the educational agency

(Rs.)

(a) Hostel buildings.

(b) Laboratory buildings.

(c) Furniture.

(d) Laboratory equipments.

Chemistry.

Physics.

Natural Science.

(e) Library Books.

(f) Other facilities for instructions.

13. (a) Details of recurring items of expenditure on staff contingencies, etc.

Amount required for the first year (Rs.)

Amount provided for by the educational agency

(Rs.)

(i) Teaching staff

(ii) Non-teaching

staff.

(iii) Contingencies.

(b)

Whether the financial position of the educational agency is sound enough to meet the entire recurring expenditure for a year, as no grant is payable to the college during the first year.

14. Whether the University has been addressed for affiliation ? If so, whether copy of the same has been enclosed.

15. Whether the challan for the fees prescribed is enclosed (if so, the number and date of challan with amount remitted maybe specified).

Declaration

I hereby certify that the particulars furnished above are correct.

PlaceDate:

.....Signature of the person duly authorised by the Educational Agency.

Form 2

[See sub-rule (5) of rule 3 of the Tamil Nadu Private Colleges (Regulation) Rules, 1976]

Statement of Particulars in Respect of Existing College

1. (a) Name of the centre (in block letters) where the college is situated.

(b)

Name of the college and the name and address of the educational agency.

(c)

The medium of instruction.

2. Revenue district, taluk, post office.

3. Is the educational agency a registered body if so, the details should be furnished.

4. Whether the centre where the college is situated lies in-

(a)

Taluk Headquarters, Town (or)

(b)

Municipality/Township (or)

(c)

Panchayat Union area (or)

(d)

Rural area not coming under any of the above categories.

5. Details of the courses existing at present.

6. (a) Courses with sanctioned and admitted strength.

(b)

Reference number and date or orders in which affiliation has been accorded to college/course.

7. Details regarding the accommodation and other amenities for students and teachers provided for by the college-

(a)

A rough sketch showing the accommodation for class room, laboratory, etc., duly marked should be enclosed.

(b)

Whether the building is a pucca or a tiled one.

(c)

Owned or rented or rent-free.

(d)

Extent of area available for each class, laboratory, etc.

8. Sanitary facilities-

Whether separate latrines and urinals are provided for teachers and students (Boys and Girls separately).

9. Playground-

(i)

Owned/leased,

(ii)

Extent.

10. Garden - Extent.

11. Equipment - Details of -

(1)

Furniture.

(2)

Teaching aids, maps, charts, etc.

(3)

Library.

(4)

Laboratory.

(5)

Miscellaneous

12. (a) Details of movable and immovable properties owned by the educational agency with the value thereof.

(b)

Income from endowment.

(c)

Income from other sources.

13. Name of the Secretary.

14. Particulars of the staff (Teaching and non-teaching).

Sl. No.

Name of the teachers or other persons

Qualification

Date of birth

Pay

Remarks

Designation

General

Professional

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

Declaration

I hereby certify that the particulars furnished above are correct.

Place:Date:

.....Signature of the person duly authorised by the Educational Agency.

Form 3

[See sub-rule (1) of rule 5 of the Tamil Nadu Private Colleges (Regulation) Rules, 1976]

Application for Approval of the Change in the Constitution of a College

1. Details of constitution.
2. Details of constitution proposed to be revised or modified.
3. Reasons for such revision or modification.
4. Date from which the original constitution is in existence.
5. Date from which the changes in constitution have to be given effect.
6. Whether a copy of the resolution of the educational agency for the change is enclosed.

Place: Date:

..... Signature of the person duly authorised by the Educational Agency.

Form 4

[See sub-rule (2) of rule 5 of the Tamil Nadu Private Colleges (Regulation) Rules, 1976]

Application For Approval of the Change of the Educational Agency

1. Name of the college with full address.
2. The taluk and district in which it is situated.
3. Particulars regarding the grant of permission to start the college.
4. Name of the educational agency which maintain the college.
5. Name of the educational agency to which the college is proposed to be transferred.
6. Whether a resolution of the new educational agency, and that of the old educational agency agreeing for the transfer of the college are enclosed ?
7. Reasons for the transfer.
8. Whether the transferee is agreeable to comply with the provisions of the Tamil Nadu Private Colleges (Regulation) Act, 1976 and the rules made thereunder ?
9. Whether the transferee is agreeable to run the college with the present teachers and other persons employed in the college on the same conditions of service ?
10. Details of non-payment of salary, if any, to the teachers or other persons employed in the college.
11. Whether any orders issued by the Educational Department are pending implementation by the transferor ?
12. Whether any disciplinary action has been taken against the new agency or any member of the committee by the Education Department, if so, the details thereof?
13. (i) Date of application.

(ii)

Date of transfer, if it is a case falling under clause (c) of sub-section (1) of section 7.

Signature of the person duly authorised by the education agency transferring the management Signature of the person duly authorised by the educational agency to whom the management is transferred.

Declaration to be Furnished by the Transferor

I,, acting for and on behalf of the educational agency hitherto recognised as an approved educational agency of the college, do hereby declare that I have handed over the college together with building requirements, records, etc., to (transferee) (the new educational agency).

I also declare that all our rights over the college have ceased from.

Place:Date:

Signature of the person duly authorised by the Educational Agency transferring the College.

Declaration to be Furnished by the Transferee

I,, acting for and on behalf of the educational agency, do hereby declare that we have taken up the college from..... educational agency. We bind ourselves to discharge the legal claims and liabilities against the previous educational agency. We also declare that we shall comply with the provisions of the Tamil Nadu Private Colleges (Regulation) Act, 1976 and the rules made thereunder.

Place:Date:

Signature of the person

duly authorised by the transferee.

Form 5

[See rule 6 of the Tamil Nadu Private Colleges (Regulation) Rules, 1976]

Statement of Particulars to be Furnished by the Minority College

1. Name of the college and postal address (in block letters).
2. Name of the centre where the minority college is situated.
3. (a) Revenue district, taluk, town or village.
(b)
Name of the educational agency of the college body, if so, the details should be furnished.
(c)
Whether the educational agency is a registered ?
(d)
Whether the educational agency is a religious or linguistic minority ?
4. The minority purported to be served by the educational agency.
5. The medium of instruction.
6. The date of opening of the college.
7. Details of courses/sections now functioning with sanctioned and admitted strength each.

Course

Major

Ancillary subject

Sanctioned strength

Admitted

Major

Ancillary

Major

Ancillary

(1)

(2)

(3)

(4)

(5)

(6)

(7)

8. Details of accommodation in the college (a rough sketch should be enclosed)

Buildings

Number of rooms

Area of each room

Number of students that can be accommodated

for study purposes

(1)

(2)

(3)

(4)

(1)

Classrooms.

(2)

Laboratory.

(3)

Hostel.

9. Details regarding the playground, sanitary facilities, etc.
10. Details of furniture (class rooms and laboratory and equipment in laboratory, etc.)
11. Particulars regarding the staff and other persons employed in the college-

(i)

Teaching staff-

Department

Name of the teacher and designation

Age and date of birth

Qualification (both general and professional
with major subject and class obtained)

Total service

Date of first appointment in the college

(1)

(2)

(3)

(4)

(5)

(6)

(ii)

Persons other than teaching staff-

Name

Designation

Age and date of birth

Qualification (with general and professional)

Date of first appointment in the college

(1)

(2)

(3)

(4)

(5)

12. Whether the educational agency has created endowment as required by the University concerned or purposes to create endowment and, if so, the details to be furnished.

13. Whether the college has any other sources of income and, if so, details may be furnished.

14. Population of the centre and also the contiguous places from where students might seek admission (particulars of men and women shall be furnished separately).

15. (a) Names of other colleges in the locality.

(b)

Distance of such colleges from the minority college.

Declaration

I,, hereby certify that the particulars furnished above are correct.

Place: Date:

.....Signature of the person duly authorised by the Educational Agency.

Form 6

[See sub-rule (2) of rule 9 of the Tamil Nadu Private Colleges (Regulation) Rules, 1976]

Application for Approval of Changes in Secretaryship

1. Name of the college.

2. Name of the approved secretary.

3. Name of the new secretary.

4. Reasons for change of secretaryship.

5. Whether a copy of resolution of the educational agency approving the new secretary is enclosed.

6. Date from which the change of secretaryship takes effect.

Declaration by the Incoming Secretary

I,, hereby declare that I have taken charge of the secretaryship of the college with effect from and that I have received from the previous secretary all the relevant records, cash, etc. Place:

Date:

Signature.

Form 7-A

[See sub-rule (2)(i) of rule 11 of the Tamil Nadu Private Colleges (Regulation) Rules, 1976]

Form of Agreement to be Executed by a College Committee of a College in Respect of Permanent Teachers

Agreement made this day of Two thousand between the college committee of college of the one part and..... teacher) of the other part;

Whereas the college committee has agreed to engage the said Thiru/Thirumathi/Selvi hereinafter referred to as the said teacher to serve in the college in the capacity of a teacher and on the pay and allowance hereinafter mentioned.

Now these witness and the parties herein do hereby agree as follows:-

1. That the college committee shall employ the said teacher as a in the college at from the date of his/her taking charge of such appointment until such employment is determined as hereinafter provided.
2. That the said teacher shall be on probation for a period of not less than two years from the date of taking charge of his/her appointment. The college committee may, for reasons to be recorded in writing, extend the period of probation to a further period not exceeding one year.

If so, orders extending the period of probation are passed in writing within six months after the period of probation, the said teacher shall be deemed to have completed his/her probation.

3. (a) That the said teacher shall employ himself/herself honestly, efficiently and diligently under the orders and instructions ? of the Principal or college committee of the said college.

(b)

If the said teacher is a Principal, he/she shall in that capacity is responsible for the internal management of the college and the academic work of the college and exercise such powers as may be necessary for the due discharge of his/ her duties.

4. That the said teacher shall not normally or on any pretext absent himself/ herself from his/her duties without the previous permission of the Principal, and if he/she is a Principal, without the prior permission of the college committee. In case of sickness or other inevitable causes, he/she shall forward a proper medical certificate or communication explaining the extraordinary circumstances to the Principal or if the said teacher is a Principal, he/she shall send such communication to the college committee.

5. That the said teacher shall, during the tenure of employment, devote his/ her attention to the duties of his/her employment and shall not on his/her own account or otherwise either directly or indirectly carry on or to be concerned in any trade, business or canvassing work, private tuition or the like, of a remunerative nature without the specific sanction of the college committee in writing in that behalf.

6. That the said teacher and the college committee shall conform to all the provisions of the Tamil Nadu Private Colleges (Regulation) Act, 1976 and the Tamil Nadu Private Colleges (Regulation) Rules, 1976.

7. (a) That the college committee shall not dismiss, remove or reduce in rank or terminate the services of the said teacher without informing him/her in writing of the grounds on which they intend to take action and shall follow the following procedure before taking any final decision regarding the punishment to be imposed on him/her and giving him/her in writing reasonable time to send his/her explanation to the college committee.

(b)

After considering his/her explanation, the college committee shall communicate to him/her its findings and, if so, desired by the said teacher conduct a personal hearing or enquiry, wherein he/she shall be given the opportunity to examine or cross-examine or any of the witnesses and also produce witnesses.

(c)

After the conduct of the personal hearing or enquiry by the college committee, the report of such personal hearing or enquiry shall be furnished to the said teacher and a notice shall be issued to him/her setting but the proposed punishment and he/she shall be given a reasonable time to submit the statement of defence against the proposed punishment.

(d)

After the receipt of the statement of defence from him/her and after taking it into consideration, the college committee shall inform him/her in writing about its final decision.

8. It shall be open to the college committee, at any time, if satisfied on medical evidence that the said teacher is unfit to discharge his/her duties for reasons of ill health, to terminate his/ her services, on paying him/her three months pay and allowances less any amount which might have been paid to him/her as leave salary after the date of his/her last appearance in the college for the regular discharge of his/her duties and subject to a minimum of one month's full pay and allowances.

9. That the said teacher shall be entitled to have his/her services terminated either by giving to the college committee three months' notice thereof in writing or by paying the college committee three months' pay and allowances in lieu of such notice if he/she is a permanent teacher. In the case of a teacher who is not permanent, the period of notice shall be two months and the amount payable in lieu thereof shall be two months' pay and allowances.

10. That the college committee may impose major punishments such as dismissal, removal or reduction in rank or termination of service or any of the following minor punishments on the said teacher for any irregularity, namely:-

(i)

censure,

(ii)

withholding of increment, with or without cumulative effect,

(iii)

recovery from pay to the extent necessary of the monetary value equivalent to the amount of increments ordered to be withheld where such an order cannot be given effect to.

Entries shall be made in the service register of the said teacher only in respect of penalties other than censure. Such entries shall be made only after the appeal, if any, preferred by the said teacher, is disposed of by the competent appellate authorities specified in the rules.

11. That the said teacher shall be paid a sum of Rs. per mensem in the scale of pay of Rs. with effect from and other allowances granted by Government, from time to time. Such teacher shall be entitled to increment indicated in the said scale.

12. Any permanent teacher whose certificate is suspended on a temporary measure or who is declared unfit to hold the post for a temporary period, shall have a right for reinstatement in service in the college in which he was working prior to his/her relief, on the expiry of the terms of his/her punishment.

The college committee shall reinstate him/her in the post which he/she held before such punishment was imposed.

In witness whereof the Secretary of the college committee and Thiru have hereunto set their hands on the day, month and year first written above.

Signed by the said.....Signature of the Secretary of the College Committee.

In the presence of-

(1)

First witness-

Signature

Name

Address

Occupation

(2)

Second witness-

Signature

Name

Address

Occupation

Signed by the said.....

(teacher)

Signature of the Teacher.

In the presence of-

(1)

First witness-

Signature

Name
Address
Occupation

(2)

Second witness-

Signature

Name
Address
Occupation

Form 7-B

[See sub-rule-(2) (i) of rule 11 of the Tamil Nadu Private Colleges (Regulation) Rules, 1976.]

Form of Agreement to be Executed by the College Committee of a Private College in Respect of the Temporary Teachers

Agreement made this day of Two thousand.....between the college committee of college of the One Part and (teacher) hereinafter referred and as the "said teacher" of the Other Part;

Whereas the college committee has offered to engage the said Thiru/Thirumathi/Selvi to serve in the college in the capacity of the teacher and on a purely temporary basis and on the pay and allowance hereinafter sanctioned;

And whereas the said Thiru/Thirumathi/Selvi has accepted the offer to serve as a teacher in the college;

Now these present witness and the parties hereto hereby agree as follows:-

1. That the college committee shall employ the said teacher and the said teacher shall serve as a teacher in the college at purely on a temporary basis from the date of his/her taking charge of his/her appointment until such appointment is determined as hereinafter provided.

2. (a) That the said teacher shall employ himself/herself honestly, efficiently and diligently under the order and instructions of the Principal of the college.

(b)

If the employee is a Principal, he/she shall, in that capacity be responsible for the internal management of the college and the academic work of the college and shall exercise such powers as may be necessary for the due discharge of his/her duties.

3. That the said teacher will not normally or on any pretext absent himself/ herself from his/her duties without the prior permission of the Principal and if he/she is a Principal, without the prior permission of the college committee. In case of sickness or other inevitable cause, he/she shall forward proper medical certificate, or communication explaining the extraordinary circumstances to the Principal. If the said person is a Principal, he/she will send such communication to the college committee.

4. That the said teacher shall, during the tenure of employment, devote his/ her attention to the duties of the said employment and shall not on his/her own account or otherwise either directly or indirectly carry on or be concerned in any trade, business, or canvassing work, private tuition or the like of a remunerative nature without the specific sanction of the college committee in writing in their behalf.

5. That college committee shall have the right to discharge the said teacher without assigning any reasons at the end of the specific period for which he/she has been engaged as a temporary teacher.

6. That the said teacher and the college committee shall conform to all the provisions of the Tamil Nadu Private Colleges (Regulation) Act, 1976 and the Tamil Nadu Private Colleges (Regulation) Rules, 1976.

7. That the said teacher shall be entitled to relinquish his/her appointment at the end of the specific period for which he/she has been appointed or earlier if he/she so desires.

8. That the said teacher shall be paid a sum of Rs monthly as pay and other allowances with effect from the date of his/her taking charge as such teacher.

In witness whereof the Secretary of the College Committee and the said teacher have hereunto set their hands on the day, month and year first written above.

(Secretary)

Signed by the said Signature of the Secretary of the College Committee.

In the presence of-

(1)

First witness-

Signature

Name

Address

Occupation

(2)

Second witness-

Signature

Name

Address

Occupation

Signed by the said.....(teacher)Signature of the Teacher.

In the presence of-

(1)

First witness-

Signature

Name

Address

Occupation

(2)

Second witness-

Signature

Name

Address

Occupation

Form 7-C

[See sub-rule (2)(i) of rule 11 of the Tamil Nadu Private Colleges (Regulation) Rules, 1976]

Form of Agreement to be Executed by a College Committee of a College in Respect of Employees Other than Teachers
Agreement made day of Two thousand between the college committee College of the One Part and
(employee) of the other part;

Whereas the college committee has agreed to engage the said Thiru/Thirumathi/Selvi (hereinafter referred to as the "said employee") to serve in the college in his/her capacity of a (name of the post to be inserted) and on the pay and allowances hereinafter mentioned.

Now these present witness and the parties hereunto hereby agree as follows:-

1. That the college committee shall employ the said employee as a in the college at from the date of his/her taking charge of such appointment until such employment is determined as hereinafter provided.
2. That the said employee shall be on probation for a period of not less than one year from the date of taking charge of his/her appointment. The college committee may, for reasons to be recorded in writing extend the period of probation to a further period of not exceeding one year.

If no orders extending the period of probation are passed in writing within six months after the period of probation, the said employee shall be deemed to have completed his/her probation.

3. That the said employee shall employ himself/herself honestly, efficiently and diligently under the orders and instructions of the Principal or College Committee of the said college.
4. That the said employee shall not normally or on any pretext absent himself/herself from his/her duties without the previous permission of the Principal. In case of sickness or other inevitable cases, he/she shall forward a proper medical certificate or communication explaining the extraordinary circumstances to the Principal.
5. That the said employee shall, during the tenure of employment, devote his/her attention to the duties of his/her employment and shall not on his/her own account or otherwise either directly or indirectly carry on or to be concerned in any trade, business or canvassing work, of a remunerative nature without the specific sanction of the college committee in writing in that behalf.

6. That the said employee and the college committee shall conform to all the provisions of the Tamil Nadu Private Colleges (Regulation) Act, 1976 (President's Act

19 of 1976

) and the Tamil Nadu Private Colleges (Regulation) Rules, 1976.

7. (a) That the college committee shall not dismiss, remove, reduce in rank or terminate the services of the said employee without informing him/her in writing of the grounds on which they intend to take action and shall follow the following procedure before taking any final decision regarding the punishment to be imposed on him/her and giving him/her in writing reasonable time to send his/her explanation to the college committee.

(b)

After considering his/her explanation, the college committee shall communicate to him/her its findings and if so desired by the/said employee, conduct a personal hearing or enquiry wherein he/she shall be given the opportunity to examine or cross examine any of the witnesses and also produce witnesses.

(c)

After the conduct of the personal hearing or enquiry by the college committee, the report of such personal hearing or enquiry shall be furnished to the said employee and a notice shall be issued to him/her setting out the proposed punishment and he/she shall be given a reasonable time to submit the statement of defence against the proposed punishment.

(d)

After the receipt of the statement of defence from him/her after taking into consideration the committee shall inform him/her in writing about its final decision.

8. It shall be open to the college committee, at any time, if satisfied on medical evidence that the said employee is unfit to discharge his/her duties for reasons of ill health, to terminate his/her services, on paying him/her three months' pay and allowances less any amount which might have been paid to him/her as leave salary after the date of his/her last appearance in the college for the regular discharge of his/her duties and subject to a minimum of one month's full pay and allowances.

9. That the said employee shall be entitled to have his/her services to terminated either by giving to the college committee three months' notice thereof in writing or by paying the college committee there months' pay and allowances in lieu of such notice.

10. That the college committee may impose major punishments, such as dismissal, removal or reduction in rank or termination of service or any of the following minor punishments on the said employee for any irregularity, namely:-

(i)

Censure;

(ii)

withholding of increment, with or without cumulative effect;

(iii)

recovery from pay to the extent necessary of the monetary value equivalent to the amount of increments ordered to be withheld where such an order cannot be given effect to. Entries shall be made in the service register of the said employee only in respect of penalties other than censure. Such entries shall be made only after the appeal, if any, preferred by the said employee is disposed of by the competent appellate authorities specified in the rules.

11. That the said employee shall be paid a sum of Rs per mensem in the scale of pay of Rs with effect from and other allowances granted by Government, from time to time. Such employee shall be entitled to increments according to the said scale of pay.

12. Any employee who is suspended on a temporary measure or who is declared unfit to hold the post for a temporary period, shall have a right for reinstatement in service in the college in which, he was working prior to his/her relief, on the expiry of the term of his/her punishment.

The college committee shall reinstate him/her in the post which he /she held before such punishment was imposed.

13. This agreement is always subject to modifications as maybe made by the college committee in pursuance of any rule, regulation, or order of the authorities of the University or any other law for the time being in force now.

In witness whereof the Secretary of the College Committee and Thiru have hereunto set their hands on the day, month and year first written above

Signed by the saidSignature of the Secretary of the College Committee.

In the presence of:-

(1)

First witness-

Signature

Name

Address

Occupation

(2)

Second witness-

Signature

Name

Address

Occupation

Signed by the said(employee)Signature of the employee.

In the presence of:-

(1)

First witness-

Signature

Name

Address

Occupation

(2)

Second Witness-

Signature

Name

Address

Occupation

Form 7-D

[See sub-rule 2(i) of rule 11 of the Tamil Nadu Private Colleges (Regulation) Rules, 1976]

Form of Agreement to be Executed by the College Committee of a College in Respect of the Temporary Employee other than Teachers

Agreement made this day of Two thousand between the college committee College of the One Part and (employee) of the other part;

Whereas the college committee has agreed to engage the said Thiru/Thirumathi/Selvi (hereinafter referred to as the "said employee") to serve in the college in his/her capacity of a on a temporary basis and on the pay and allowances hereinafter mentioned.

And Whereas the said Thiru/Thirumathi/Selvi has accepted the offer to serve as a in the college;

Now these present witness and the parties hereto hereby agree as follows:-

1. That the college committee shall employ the said employee and the said employee shall serve as a in the college at on a temporary basis from the date of his/her taking charge of his/her appointment for a period of month from the date of taking charge or until such appointment is determined as hereinafter provided.
2. That the said employee shall employ himself/herself honestly, efficiently and diligently under the order and instructions of the principal of the College.
3. That the said employee will not normally or on any pretext absent himself/ herself from his/her duties without the prior permission of the Principal. In case of sickness or other inevitable causes, he/she shall forward proper medical certificate or communication explaining the circumstances to the principal.
4. That the said employee shall, during the tenure of his/her employment, devote his/her attention to the duties of the said employment and shall not, on his/her own account or otherwise, either directly or indirectly carry on or be concerned in any trade, business or canvassing work, or the like of a remunerative nature without the specific sanction of the college committee in writing in that behalf.
5. That the college committee shall have the right to discharge the said employee without assigning any reason at the

end of the stipulated period of months from the date of taking charge, for which he/she has been engaged temporarily.

6. That the said employee and the college committee shall conform to all the provisions of the Tamil Nadu Private Colleges (Regulation) Act, 1976 (President's Act

19 of 1976

) and the Tamil Nadu Private Colleges (Regulation) Rules, 1976.

7. That the said employee shall be entitled to relinquish his/her appointment at the expiry of the period for which he/she has been appointed or with the consent of the College Committee at any time earlier if he/she so desires.

8. That the said employee shall be paid a sum of Rs monthly as pay and other allowances with effect from the date of his/her taking charge as such.

In witness whereof, the Secretary of the College Committee and the said employee have hereunto set their hands on the day, month and year first written above.

Signed by the said(Secretary)Signature of the Secretary of the College Committee.

In the presence of:-

(1)

First witness-

Signature

Name

Address

Occupation

(2)

Second witness-

Signature

Name

Address

Occupation

In the presence of:-

(1)

First witness-

Signature

Name

Address

Occupation

(2)

Second witness-

Signature

Name

Address

Occupation

Signed by the said (employee)Signature of the employee.

Form 8

[See sub-rule (1) of rule 16]

Application Form For Permission to the Closure of College/courses/classes

1. (i) Name of the College.

(ii)

Name and address of the educational agency.

2. Details of the courses existing at present.

3. (i) College/Course with sanctioned and admitted strength (I, II and III year) for which permission is requested for the closure.

(ii)

Reference number and date of orders, in which affiliation has been accorded to course(s) by the University.

(iii)

Reference number and date of orders, in which the course(s) has been admitted to grant-in-aid.

4. Reasons for the closure of college/course(s)/class.

5. The details of alternative arrangements made for continuance of the instructions of the students in the course to which they have been admitted.

6. The year from which the college/course(s) is proposed to be closed.

7. The details of the staff, who will be rendered surplus due to the closure of the college/course with their designation, date of appointment.

8. The names of the colleges situated within a radius of 10 KMs. and the courses offered in those colleges.

9. Details of property including cash endowment endowed to the course/class.

10. Details of proposal for the utilisation of the above said endowment/college building for the educational purpose.

11. Details of other properties including the contributions and donations from the public to the college.

12. Details of proposal for the utilisation of the above said property.

13. The details of Government grant, if any, (including, building, laboratory, etc.) received for the said course.

14. The details of the grants of the University Grants Commission or other grants any, if (with full details) received for the said course.

15. Whether the resolution of college committee and educational agency to the closure of the college/ course/class has been enclosed.

Declaration

I hereby certify that the particulars furnished above are correct.

.....Signature of the person duly authorised by the Educational Agency.

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